



W.E.B. Du Bois: Pioneering American Criminologist

Author(s): Shaun L. Gabbidon

Source: *Journal of Black Studies*, Vol. 31, No. 5 (May, 2001), pp. 581-599

Published by: SAGE Publications, Inc.

Stable URL: <https://www.jstor.org/stable/2668077>

Accessed: 29-04-2026 23:46 UTC

JSTOR is a not-for-profit service that helps scholars, researchers, and students discover, use, and build upon a wide range of content in a trusted digital archive. We use information technology and tools to increase productivity and facilitate new forms of scholarship. For more information about JSTOR, please contact support@jstor.org.

Your use of the JSTOR archive indicates your acceptance of the Terms & Conditions of Use, available at <https://about.jstor.org/terms>



JSTOR

SAGE Publications, Inc. is collaborating with JSTOR to digitize, preserve and extend access to *Journal of Black Studies*

W.E.B. DU BOIS

Pioneering American Criminologist

SHAUN L. GABBIDON

Pennsylvania State University

Over the past several decades, numerous scholars have shown the relevance of the work of W.E.B. Du Bois to several academic disciplines including sociology (Rudwick, 1974), philosophy (Holmes, 1970), anthropology (Harrison, 1992), economics (Boston, 1991), and others. One discipline, however, that has only recently begun to take notice of Du Bois's scholarship is that of American criminology. Over the past several years, African American criminologists have placed Du Bois's works among the classics of American criminology (see Gabbidon, 1996, 1998, 1999a, 1999b; Hawkins, 1995; Taylor Greene & Gabbidon, 2000; Young & Taylor Greene, 1995). This article aims to build on the previous literature in three ways. First, we examine what may have spurred Du Bois's interest in crime and caused him to repeatedly return to the subject throughout his career. Second, we review some of his early crime-related works and then place them in the context of other American criminologists writing during his era. And finally, we consider whether Du Bois's writings speak to the problem of African American criminality here at the beginning of the 21st century.

EARLY INTEREST IN CRIME AND JUSTICE

Du Bois's interest in the subject of crime and justice began early in his life. Even as a teenager, Du Bois began to examine these issues. For instance, in his first publication as correspondent for the *New York Globe*, Du Bois (then a 15-year-old teenager), describing

the significant events in his hometown of Great Barrington, Massachusetts, wrote,

The Citizens of the town are forming a Law and Order Society to enforce the laws against liquor selling which have been sadly neglected for the past year or two. It would be a good plan if some of the colored men should join it. (Du Bois, 1883/1986, p. 1)

This passage tells us two things. First, Du Bois was aware even at this young age of the importance of planned organization to handle the problem of alcohol, which apparently was having an ill effect on the Great Barrington community. In addition, it shows that he observed the need for African Americans to be active in such an association. These ideas resonate throughout Du Bois's life.

Another early experience that may have encouraged Du Bois's interest in crime and justice also occurred during his high school years. During this period, Du Bois, along with several other town youth, was caught stealing grapes from the orchards of a prominent Great Barrington citizen. According to Lewis (1993), county judge Justin Dewey likely felt, "A poor, spirited black boy would be much improved learning a trade under lock and key" (p. 34). If it were not for Frank Hosmer, Du Bois's high school principal and early mentor, he would likely have landed in the state reform school. Although Du Bois devoted only one paragraph to the incident in his autobiography, it is clear from his writing that it had a profound effect on him.

Noting the severity of the punishment in relation to the crime committed, Du Bois (1968) wrote, "During my ten years of boyhood life there was in the county one murder; once the bank was robbed of a small sum; there were minor cases of stealing and trespass and some drunkenness which called for arrest" (p. 91). He clearly felt that the punishment (being sent to a reform school) did not fit the crime (stealing grapes). Furthermore, he understood the importance of the victim in this case, having stated, "Taking fruit had never been regarded by us as more than the right of town boys and we knew all the best orchards. But in this case we filched some choice and carefully tended grapes from a prominent citizen" (p. 91).

At this early, age Du Bois personally experienced how the justice system often operated on the basis of certain contextual characteristics. In his case, the status of the victim nearly resulted in his being sent to reform school. It seems reasonable to believe that this incident might also have initiated his interest in crime and justice; many present-day criminologists would undoubtedly suggest that it was injustices such as the one nearly encountered by Du Bois that got them interested themselves in studying crime and justice. This episode probably served as an epiphanic event in Du Bois's life. In fact, it was around this same period that he began to meticulously collect and annotate his personal papers (Broderick, 1959, p. 4). And presumably around the same time, Du Bois initiated his daily ritual of rising to begin work at 6:00 a.m. and retiring at 10:00 p.m. (Du Bois, 1938/1976, p. 168). This event, and his subsequent actions, might have been an indication that his life's purpose, to fight for the uplifting of African Americans, began to crystallize. Whatever the reason for his interest in the issues of crime and justice, he left a legacy that can no longer be ignored.

THE CRIMINOLOGY OF W.E.B. DU BOIS

As an undergraduate at Harvard University, Du Bois was steered away from the study of philosophy into that of history by one of his mentors, the noted psychologist William James. With his move into the history department, Du Bois came under the influence of Albert Bushnell Hart, who encouraged Du Bois to enroll in the doctoral program in history. Once immersed in the program, it is curious how Du Bois came up with a dissertation subject related to crime, albeit White crime vis-à-vis African American criminality. Building on his second scholarly publication, "The Enforcement of the Slave Trade Laws," Du Bois completed his dissertation, "The Suppression of the African Slave Trade to the United States of America: 1638-1870" (later published by Harvard under the same title), which reviewed the many efforts to stop the slave trade after it was internationally outlawed. From his study, Du Bois found that there was lax enforcement of statutes created to end the trade and subse-

quently few convictions related to the trade. This study, and its findings, likely served as a precursor to some of Du Bois's later crime-related publications on African American experiences with the criminal justice system, which regularly showed a double standard in regard to criminal justice enforcement patterns.

Nearing his graduation from Harvard, Du Bois accepted an appointment at Wilberforce University in Ohio. Following his employment there, Du Bois headed to Philadelphia to embark on one of his most ambitious research projects, which also resulted in one of his classic statements on crime. But nearing the end of his tenure in Philadelphia, Du Bois, at the 1897 Academy of Political and Social Sciences conference, laid out his now-famous plan for the study of African American problems. Within the plan, Du Bois specifically spoke of the lack of scientific studies on African American crime, noting the emotion about the subject that was impeding scientific study in the area. On this point, he wrote,

It is extremely doubtful if any satisfactory study of Negro crime and lynching can be made for a generation or more, in the present condition of public mind, which renders it almost impossible to get at facts and real conditions. (Du Bois, 1898b/1982, p. 49)

This statement was obviously a prelude of things to come.

Generally, Du Bois's early views on crime can be divided into two categories: first, those crime-related publications either exclusively devoted to crime or those writings found in publications devoted to broader topics but providing insights into crime (Du Bois, 1898a/1981, 1899b/1973, 1901a, 1903/1982; Du Bois & Dill 1913); second, his crime-related publications that can be separated into either those that primarily discuss crime in the North (Du Bois, 1899b/1973, 1901a) or those that discuss crime in the South (Du Bois, 1898a/1981, 1899a, 1900/1982, 1901b, 1902/1982). We begin with a review of his thoughts on crime in the North, primarily concentrating on his research in Philadelphia. This is followed by a summary of his ideas on crime in the South. Because many of his ideas on crime were formulated during his first tenure at Atlanta University (1897-1910), where he was the leader of the "Atlanta

School” of social scientific research (see Gabbidon, 1999a), our review is primarily limited to this period.

CRIME IN NORTHERN CITIES

After making his earlier statement on the dearth of scientific studies on crime, it is clear why Du Bois paid a tremendous amount of attention to crime in Philadelphia. And once he completed the study, Du Bois's final product, *The Philadelphia Negro* (1899b/1973), included numerous pioneering statements on the problem of crime in the notorious seventh ward and in the city in general. Du Bois first recognized the role of the “social revolution” that took place following emancipation when thousands of rural African Americans migrated to the North in hopes of building a new life with the anticipated opportunities in the growing metropolises. Being thrust into unfamiliar city surroundings, Du Bois suggested, led to a number of conditions including crime (1899b/1973, p. 235). Du Bois also offered explanations for the disproportionate number of African Americans in the prison population.

On the issue of disproportionality, Du Bois reminded readers about the discrimination encountered by African Americans in the criminal justice system, noting, “He was arrested for less cause and given longer sentences than whites. Great numbers of those are arrested and committed for trial were never brought to trial so that their guilt could be proven or disproven” (Du Bois, 1899b/1973, p. 239). Furthermore, Du Bois directed observers to the average sentences for offenders, which showed African American sentences averaged a year longer than Whites. This, Du Bois believed, was an obvious cause of the disparities he observed in correctional institutions. He further cautioned readers about the correctional figures, noting that convicts in the penitentiary did not tell the whole story. His observations showed that in the courts, “the rich are always favored somewhat at the expense of the poor, the upper classes at the expense of the unfortunate classes, and whites at the expense of Negroes” (Du Bois, 1899b/1973, p. 249). And Du Bois, obviously distinguishing between street and so-called white-collar crimes, pointed to the differential treatment of certain crimes, observing,

We know for instance that certain crimes are not punished in Philadelphia because the public opinion is lenient, as for instance embezzlement, forgery, and certain sorts of stealing; on the other hand a commercial community is apt to punish with severity petty thieving, breaches of the peace, and personal assault or burglary. (Du Bois, 1899b/1973, p. 249)

Throughout the text, Du Bois continued with crime-related themes, most notably in the related areas of criminal classes and organized crime. From his observations, Du Bois divided the seventh-ward residents into one of four classes. Within his "submerged tenth," Du Bois identified a distinct criminal class. Those in this class were engaged in "shrewd laziness, shameless lewdness, [and] cunning crime" (Du Bois, 1899b/1973, pp. 311-312). He continued in his description of the class, stating,

Their nucleus consists of a class of professional criminals, who do not work . . . and migrate here and there. . . . these are a set of gamblers and sharpers who seldom are caught in serious crime, but who nevertheless live from its proceeds and aid and abet it. The headquarters are usually the political clubs and pool rooms; they stand ready to entrap the unwary and tempt the weak. Their organization, tacit or recognized, is very effective, and no one can long watch their actions without seeing that they keep in close touch with the authorities in some way. (Du Bois, 1899b/1973, p. 312)

Following his discussion on criminal classes, Du Bois later focused on organized crime in the ward and its connection with the rampant political corruption largely connected to the African American vote. Here, Du Bois illustrated how African American male suffrage resulted in votes being traded for jobs. Through an extremely organized network, Du Bois showed how the corruption involved citizens, politicians, and law enforcement officials (Du Bois, 1899b/1973, pp. 373-379).

With the publication of *The Philadelphia Negro* (1899b/1973) behind him, Du Bois continued his lifelong study of African American criminality. He continued his insights into crime in Northern cities with his work, *The Black North in 1901* (1901a), which was the result of research in several Northern cities. Here, Du Bois

pointed to similar explanations found in his research in Philadelphia but also felt a need to add that crime among African Americans was not normal and was a product of the treacherous conditions in which many of them were forced to reside (Du Bois, 1901a).

CRIME IN THE RURAL SOUTH

In the South, Du Bois presented additional views into crime in the African American community. In his first publication exclusively devoted to crime, "The Negro and Crime" (1899a), Du Bois outlined four causes: (a) the convict-lease system, (b) the attitude of the courts, (c) lawlessness and barbarity of the mob, and (d) segregation. In Du Bois's view, the emancipation of African Americans significantly affected those who stayed in the South and those who migrated to the North. In the South, Southern landowners were left with a shortage of workers that resulted in the need to devise a strategy to secure cheap labor. In this article, and in another one 2 years later (see Du Bois, 1901b), Du Bois showed how the Black Codes, in conjunction with Southern courts, effectively secured the required labor. With the creation of the convict-lease system, the state could lease convicts (primarily former slaves) to the highest bidder, with little or no oversight by the state. And based on Du Bois's observations, this resulted in nothing more than another form of slavery (Du Bois, 1901b).

Du Bois's reference to the lawlessness and barbarity of the mob was directed at the increased lynching of African Americans during the postreconstruction period. He viewed this practice as an open invitation for African Americans to retaliate in a number of ways. On the matter of lynching, he opined,

Let a Negro be simply accused of any crime from barn-burning to rape and he is liable to be seized by a mob, given no chance to defend himself, given neither trial, judge nor jury, and killed. Passing over the acknowledged fact that many innocent Negroes have thus been murdered, the point that is of greater gravity is that lawlessness is a direct encouragement to crime. It shatters the faith of the mass of Negroes in justice; it makes race hatred fiercer; it discourages honest effort; it transforms horror at crime into sympathy for the tor-

tured victim; and it binds the hands and lessens the influence of those race leaders who are striving to preach forbearance and patience and honest endeavor to their people. It teaches eight million wronged people to despise a civilization which is not civilized. (Du Bois. 1899a/1982, p. 50)

And finally, Du Bois pointed to the recently passed legal segregation as another contributor to crime in the African American community. He firmly believed that this practice resulted in race friction that in some instances, led African Americans to engage in crime. After this publication, Du Bois continued to make general statements on crime (Du Bois, 1900, 1902), but it was his 1904 Atlanta University publication that again highlighted some of his pioneering crime-related research.

In this work, *Some Notes on Negro Crime, Particularly in Georgia*, for which Du Bois served as editor and primary contributor (see Aptheker, 1973a, p. 530), he provided his usual insights on crime but complemented them with the results from several surveys, one of which was sent to police chiefs, public officials, and citizens (both African American and White) throughout the state of Georgia. His aim was to determine how these officials perceived African American crime patterns in their jurisdiction. Besides limiting his inquiry to whether crime was increasing or decreasing, he also wanted to determine whether the respondents felt that African Americans were being fairly treated by the justice system (Du Bois, 1904). Anticipating the potential bias in the views of White officials, he shrewdly also solicited responses from African American citizens in these same jurisdictions. Of the counties responding to Du Bois's survey, 10 suggested that crime was increasing, whereas 56 suggested that crime among African Americans was decreasing. As for equality in the justice system, much like public opinion surveys of today, African Americans' views regarding fairness in the justice system differed from those of Whites (Du Bois noted that nearly all Whites felt African Americans were treated fairly by the justice system). On several pages in the publication, Du Bois presents qualitative responses that show the stark differences of opinion regarding fairness in the justice system (Du Bois, 1904, pp. 35-48).

As part of his research, Du Bois also sent surveys to African American youth enrolled in Atlanta public schools and to older youth from across the state. Besides his earlier inquiry into perceptions of fairness in the criminal justice system, he also asked for their perceptions on the purpose of each area of the justice system (law, police, and courts). Much of their responses were in line with their created purpose (i.e., to determine guilt or innocence). He also investigated the youths' ideas on the causes of African American criminality and potential remedies. Here, he found support for some of the ideas he had previously espoused (see specifically, Du Bois, 1899a). These pioneering crime polls represent an important part of Du Bois's legacy in criminology. Although public opinion polls have been around for some time, Du Bois made use of them in an era when they were generally not considered the norm when investigating crime.

These represent some of Du Bois's staple insights into crime and Justice. After his move to the NAACP, Du Bois continued to write on crime but concentrated his efforts on the hate crime of lynching. Here, he repeatedly wrote on the subject and actively participated in demonstrations seeking to eliminate the practice. During this period, his interest in criminal justice extended beyond his writings, as seen by his serving on the Fair-Play League Committee of the New York City Police Department, which allowed Du Bois and other Harlem residents to visit incarcerated African Americans to ensure their humane treatment (Aptheker, 1973b, p. 258). Furthermore, during his two tenures at the NAACP and Atlanta University, he continued to publish on such crime-related topics as organized crime in the African American community (Du Bois, 1941/1986), crime in Harlem (Du Bois, 1943/1986), and corporate crime (Du Bois, 1952a/1982).

DU BOIS'S PLACE IN AMERICAN CRIMINOLOGY

As Du Bois was beginning his crime-related work, American criminology was in its infancy, with the criminal anthropological

school leading the way. Based on the work of Italian physician Cesare Lombroso, the so-called father of criminology, these theorists examined the features of criminals and pointed to their biology as the cause of their criminality (Rafter, 1992). Du Bois (1898b/1982) had little time for the research of these scholars whose theories were based, as he put it, "on the flimsiest basis of scientific fact" (p. 50). He openly rejected the views of the biological school and became a pioneer in sociological criminology. His studies of crime repeatedly relied on sociological analyses to explain crime in the African American community. Except primarily for the scholarship of African American scholars writing immediately after Du Bois (see Taylor Greene and Gabbidon, 2000), very few White scholars approached crime from a sociological perspective.

Not until Franz Boas at Columbia University, who some have said was likely influenced by Du Bois's work (see Baker, 1994; 1998), challenged the biological theorist did mainstream American thinkers look beyond biology to explain African American criminality. It took almost 20 years after Du Bois left Atlanta University for the University of Chicago School of Sociology, which followed his lead both in explaining crime (see Frazier, 1949) and in the development of its social scientific research program (Gabbidon, 1999b), for any school using the sociological approach to produce a substantial body of literature comparable to that produced by Du Bois. From his observations regarding African American criminality, it was Du Bois's aim to assist in suggesting actions that would minimize crime in the African American community. We turn now to his social policy suggestions related to crime to see if they have stood the test of time and remain relevant for addressing crime in the African American community.

CRIME POLICY SUGGESTIONS: STILL OF RELEVANCE A CENTURY LATER?

As a student in Germany, Du Bois engaged the minds of the leading scholars of the period. One of those scholars, Gustav von Schmoller, etched in his mind the value of obtaining facts first, on

which to base social policy (see Broderick, 1958a, 1958b). On the issue of crime, Du Bois presented numerous social policy suggestions. Before we discuss them, it is important to note that although the state of African American involvement has improved in some respects, African Americans remain overrepresented throughout the criminal justice system (Walker, Spohn & DeLone, 2000). Therefore, one wonders if Du Bois's 100-year-old ideas can inform crime policy today.

During the height of his research on crime in the African American community, Du Bois proposed several potential remedies, which he presented in the form of those responsibilities of African Americans and those responsibilities of Whites. That is, he believed that in most social problems related to African Americans, there were actions that needed to be taken by both Whites and African Americans to successfully remedy them. Tackling crime in the African American community was no different. Drawing on his previously discussed publications on crime, some of his suggested remedies for both groups are presented below, followed by a discussion of their relevancy for addressing crime in the African American community today.

SUGGESTIONS FOR AFRICAN AMERICANS

1. Proper home training: Du Bois's investigations led him to conclude that in too many instances, African Americans were not being appropriately taught at home the virtues of truth, chastity, and self-respect, all of which led to serious problems in the community, including crime.
2. Accept employment over crime: Another concern Du Bois expressed was that some African Americans viewed certain employment opportunities in low regard and chose crime over these "menial" jobs.
3. Cooperative economics: Du Bois was also convinced that through the pooling of African American resources, sufficient employment could be created to reduce economic-related offenses.
4. Recreational activities: On numerous occasions, Du Bois expressed the belief that recreation was an important crime prevention measure. In his view, it was less expensive to invest in rec-

reaction than to have the courts deal with delinquent youth after the fact.

5. Assorted crime prevention measures: Some of these included keeping young girls off the street at night, removing African Americans from crowded and "tainted" neighborhoods, giving lectures on health and habits, and discussing the dangers of gambling, alcoholism, and other illicit activities.
6. Thriftiness in spending: Du Bois observed that African Americans wasted enormous amounts of money on excesses (i.e., expensive clothes, furniture, etc.). He felt that this money could be more wisely spent in efforts aimed at creating employment for the masses.
7. Better class responsibility: As a prelude to his concept of the "talented tenth," he clearly believed that the "better classes" should have a hand in addressing crime in the African American community.
8. Temperament: Although understandable to some extent, Du Bois readily recognized that African Americans needed to be more patient and calm with their fellow citizens.
9. Condemn both crime and criminals: Du Bois was not an apologist for crime in the African American community nor for those African Americans engaged in crime. He felt that both severely inhibited the progress of African Americans.
10. The church: Du Bois felt the church should play a central role in the prevention and reform of criminals.
11. Juvenile institutions: Throughout his writings, Du Bois called for the special treatment of juveniles. The use of reformatories was important in that Du Bois felt that misdirected youth needed training, and he did not want to see them get tainted in facilities housing adult offenders.
12. Good schools: Even though it was clear to Du Bois that Whites played a role in the dismal school systems in some African American communities, he recognized that it was primarily up to African Americans to create viable schools to uplift African Americans, thereby reducing the likelihood that they would turn to crime.

SUGGESTIONS FOR WHITES

1. End discrimination in employment: Because Whites composed the bulk of employers in most major communities, Du Bois felt

that discrimination in employment directly led to discouragement among African Americans who, in some instances, turned to crime. Furthermore, Du Bois's plea was for merit to dictate who was given an available job opening.

2. Work with better classes of African Americans: Du Bois foresaw that if Whites worked with the better class of African Americans to resolve problems, significant progress could be made through such a coalition.
3. Treat African Americans with dignity and respect: This was, to Du Bois, the most basic of expectations from Whites. To do otherwise would lead to race conflicts, ultimately leading to riots.
4. Creation of fair laws: With the use of the Black Codes after emancipation to criminalize African Americans, Du Bois was well aware of the potential impact of unjust laws.
5. Fairness in the courts: Du Bois's research repeatedly confirmed that the courts created a "double system of justice" in which African Americans received little to no justice.
6. Elimination of the convict-lease system: Du Bois was clear in his belief regarding the evil created when states leased the labor of convicts to private persons. He not only felt that it was the creation of another form of slavery, but he also felt that free labor should never be displaced by convict labor.
7. Elimination of chain gangs: With his call for more intelligent methods of punishment, Du Bois repeatedly urged the elimination of dehumanizing chain gangs.
8. More African American police: By hiring more African American police officers, Du Bois felt that police brutality and other abuses would be minimized.
9. More African Americans on juries: With more African Americans on juries, Du Bois felt that there was an increased likelihood that African Americans would get fairer justice in the court system.
10. Elimination of lynching: Du Bois recognized the importance of the elimination of this practice, which often resulted in the death of innocent African Americans.

A review of Du Bois's potential remedies for addressing crime in the African American community suggest that they have stood the test of time and still remain applicable. Among African Americans today, one would find little argument that there are still issues related to home training that need to be addressed. And there are

recurring expressions of the need for cooperative economics (considering the billions of dollars spent a year by African Americans outside their community) to address some of the employment needs of African Americans, particularly in inner-city communities where unemployment is the highest. Furthermore, the spending habits and materialism within the African American community remains a point of concern. This materialism has led some who are unwilling to work in those jobs that are perceived as below them to live "large" through participation in various illicit activities.

On the role of crime prevention, criminologists continue to argue that monies spent on recreation and preventive programs in the long run will not only reduce crime but also be more cost effective. As for the role of active churches and good schools, Du Bois is again on the mark. Many churches continue to work with offenders in the areas of drug rehabilitation and skill development. But in some minds, there is still the belief that churches have not done enough. The question of school is one that permeates the criminal justice literature. Bad schools create disinterested students who drop out and, having few choices, end up engaging in crime. The value of education has increased even more since Du Bois's time. More people are college educated than ever before, and this requires appropriate primary and secondary schooling. Du Bois was also adamant about not protecting African American criminals. That is because he recognized the detrimental impact that crime had on the African American community, he felt that it should never be excused.

With regard to the responsibility of Whites, Du Bois's views point to actions related to the status of Whites in society. Ending discrimination in employment, for example, represents something that clearly was in the hands of Whites. In his view, if Whites chose to continue blatant discrimination in employment, they also chose to accept the likelihood of African American criminality. Even though there are laws in place to challenge this concern today, the prevalence of employment discrimination is still alive and well. Du Bois's call for Whites to create fairer laws and fairer courts, to put more African Americans on juries, and to eliminate the convict-lease system again speaks to current concerns. Research has

consistently shown that there is discrimination, of varying levels, throughout the criminal justice system. Furthermore, with the rise of the "prison industrial complex," Du Bois's concerns remain valid. Today, many would argue that the questionable laws come in the form of drug laws (i.e., crack cocaine vs. powder cocaine sentencing) the sole purpose of which, in the eyes of many, is to provide the bodies needed to keep said "prison industrial complex" going.

As for African Americans employed as criminal justice professionals, Du Bois would have been pleased with the appreciable number of African Americans now employed as criminal justice professionals (largely aided by programs such as affirmative action), but he almost certainly could not have foreseen that, in some instances, the adherence to police culture would dictate the behavior of African American officers more so than race solidarity. As for the most controversial crime policy, the death penalty, Du Bois, much like most African Americans today, was in favor of its use for murderers (see Du Bois, 1943/1986).

Finally, many of Du Bois's remedies for addressing crime in the African American community remain relevant 100 years after he proposed them. Although much has changed in the African American community, little has changed in respect to the causes of crime; as a result, many of Du Bois's ideas also remain valid.

DISCUSSION

Although we cannot say that Du Bois founded American criminology, it can be argued that he was among the early pioneers of the discipline. His research paved the way for sociological criminology. With this approach, Du Bois recognized the impact that emancipation had on African Americans in regard to crime in both the South and the North. He also recognized the central role that race discrimination played in relation to crime in the African American community, particularly in law enforcement, the courts, and wherever the color line was rigorously drawn. Furthermore, throughout his life, he wrote about and agitated against the hate crime of lynch-

ing. Du Bois's use of crime polls to gauge public opinion about crime and fairness in the criminal justice system represents another pioneering effort in criminology. Finally, as a testament to the thoroughness of his research and the foresight in his thinking, many of his potential remedies for crime in the African American community remain applicable even today.

Based largely on recent scholarship highlighting Du Bois's crime-related contributions, the discipline of criminology has begun the process of recognizing his pioneering contributions, most notably, in 1999, when the Western Society of Criminology created the W.E.B. Du Bois Award to be given to a criminologist from the West Coast who has made outstanding contributions to the study of race, crime, and ethnicity. In the same year, the National Institute of Justice, the research arm of the Department of Justice, initiated the W.E.B. Du Bois Fellowship Program for young scholars interested in conducting research related to crime, violence, and the administration of justice in diverse cultural contexts. One sees a certain irony in the creation of the latter award, considering the failed attempt by the same Department of Justice, in the early 1950s, to convict Du Bois, because of his controversial views, on baseless charges (Du Bois, 1952b). And although their attempt may have failed, it effectively diminished his legacy in scholarly circles until the Black Studies movement of the late 1960s and early 1970s.

When, in 1903, Du Bois prophetically stated, "The problem in the Twentieth Century is the problem of the color line," he was patently aware, because of his research leading up to the publication of *The Souls of Black Folk* (1903/1982), that this was also true of African American involvement in the criminal justice system. But, little did he know that his prediction would likely hold true well into the 21st century.

REFERENCES

- Aptheker, H. (1973a). *Annotated bibliography of the published writings of W.E.B. Du Bois*. Millwood, NY: Kraus-Thomson Organization.

- Aptheker, H. (1973b). *The correspondence of W.E.B. Du Bois* (vol. I 1877-1934). Amherst: University of Massachusetts Press.
- Baker, L. D. (1994). The location of Franz Boas within the African American struggle. *Critique of Anthropology*, 14(2), 199-217.
- Baker, L. D. (1998). *From savage to Negro: Anthropology and the construction of race, 1896-1954*. Berkeley: University of California Press.
- Boston, T. D. (1991). W.E.B. Du Bois and the historical school of economics. *American Economics Association Papers and Proceedings*, 81(May), 303-307.
- Broderick, F. L. (1958a). The academic training of W.E.B. Du Bois. *Journal of Negro Education*, 27(1), 10-16.
- Broderick, F. L. (1958b). German influence on the scholarship of W.E.B. Du Bois. *Phylon*, 19(December), 367-371.
- Broderick, F. L. (1959). *W.E.B. Du Bois: Negro leader in a time of crisis*. Stanford, CA: Stanford University Press.
- Du Bois, W.E.B. (1883, April 10). (Reprinted in *Newspaper columns by W.E.B. Du Bois* (Vol. I 1883-1944), p. 1, by H. Aptheker, Ed., 1986, White Plains, NY: Kraus-Thomson Organization)
- Du Bois, W.E.B. (1898a). The Negroes of Farmville, Virginia: A social study. Washington, DC: Department of Labor. (Reprinted in *Contributions by W.E.B. Du Bois in government publications and proceedings*, by H. Aptheker, Ed., 1981, Millwood, NY: Kraus-Thomson Organization)
- Du Bois, W.E.B. (1898b). The study of Negro problems. *Annals of the American Academy of Political and Social Sciences*, 11(January), 1-23. (Reprinted in *Writings in periodical literature edited by others vol. 1 (1891-1909)*, pp. 40-52, by H. Aptheker, Ed., 1982, Millwood, NY: Kraus-Thomson Organization)
- Du Bois, W.E.B. (1899a). The Negro and crime. *The Independent*, 51(May), 1355-1357.
- Du Bois, W.E.B. (1899b/1973). *The Philadelphia Negro: A social study*. Millwood, NY: Kraus-Thomson Organization.
- Du Bois, W.E.B. (1900, February). The problem of Negro crime. *Bulletin of Atlanta University*. (Reprinted in *Writings in periodical literature edited by others vol. 1 (1891-1909)*, pp. 67-68, by H. Aptheker, Ed., 1982, Millwood, NY: Kraus-Thomson Organization)
- Du Bois, W.E.B. (1901a). *The Black North in 1901*. New York: Arno.
- Du Bois, W.E.B. (1901b). The spawn of slavery: The convict-lease system in the South. *The Missionary Review of the World*, 14, 737-745. (Reprinted in *Writings in periodical literature edited by others vol. 1 (1891-1909)*, pp. 110-116, by H. Aptheker, Ed., 1982, Millwood, NY: Kraus-Thomson Organization)
- Du Bois, W.E.B. (1902). Crime and our colored population. *The Nation*, 75(December), 499. (Reprinted in *Writings in periodical literature edited by others vol. 1 (1891-1909)*, p. 153, by H. Aptheker, Ed., 1982, Millwood, NY: Kraus-Thomson Organization)
- Du Bois, W.E.B. (1903/1982). *The souls of Black folk*. New York: Penguin.
- Du Bois, W.E.B. (Ed.). (1904). *Some notes on Negro crime, particularly in Georgia*. Atlanta, GA: Atlanta University Press.
- Du Bois, W.E.B. (1938). *Correspondence to Cyril Clemens June 2, 1938*. (Reprinted in *The Correspondence of W.E.B. Du Bois* (Vol. II 1934-1944), p. 168, by H. Aptheker, Ed., 1976, Amherst: University of Massachusetts Press)
- Du Bois, W.E.B. (1941). Economic illiteracy. *Amsterdam News*, February 15. (Reprinted in *Newspaper columns by W.E.B. Du Bois* (Vol. I 1883-1944), by H. Aptheker, Ed., 1986, White Plains, NY: Kraus-Thomson Organization)

- Du Bois, W.E.B. (1943). On the riots. *Amsterdam News*, August 21. (Reprinted in *Newspaper columns by W.E.B. Du Bois* (Vol. I 1883-1944), pp. 546-547, by H. Aptheker, Ed., 1986, White Plains, NY: Kraus-Thomson Organization)
- Du Bois, W.E.B. (1952a). *America and world peace*. (Reprinted in *Writings by W.E.B. Du Bois in periodicals edited by others* (Vol. IV 1945-1961), pp. 180-183, by H. Aptheker, Ed., 1982, Millwood, NY: Kraus-Thomson Organization)
- Du Bois, W.E.B. (1952b). *In battle for peace: The story of my 83rd birthday*. New York: Masses and Mainstream.
- Du Bois, W.E.B. (1968). *The autobiography of W.E.B. Du Bois*. New York: International Publishers.
- Du Bois, W.E.B., & Dill, A. G. (1913). *Morals and manners among Negro Americans*. Atlanta, GA: Atlanta University Press.
- Frazier, E. F. (1949). *The Negro in the United States*. New York: Macmillan.
- Gabbidon, S. L. (1996). An argument for the inclusion of W.E.B. Du Bois in the criminology and criminal justice literature. *Journal of Criminal Justice Education* 7(1), 99-111.
- Gabbidon, S. L. (1998). W.E.B. Du Bois on crime: Rethinking the beginnings of American criminology. *The Criminologist*, 23(6), 1, 3, 21.
- Gabbidon, S. L. (1999a). W.E.B. Du Bois and the 'Atlanta school' of social scientific research: 1897-1913. *Journal of Criminal Justice Education*, 10(1), 21-38.
- Gabbidon, S. L. (1999b). W.E.B. Du Bois on crime: American conflict theorist. *The Criminologist*, 24(1), 1, 3, 20.
- Harrison, F. V. (1992). The Du Boisian legacy in anthropology. *Critique of Anthropology*, 12(3), 239-260.
- Hawkins, D. F. (1995). Ethnicity, race, and crime: A review of selected studies. In D. F. Hawkins (Ed.), *Ethnicity, race, and crime: Perspectives across time and space* (pp. 11-46). Albany: State University of New York Press.
- Holmes, E. C. (1970). W.E.B. Du Bois: Philosopher. In J. H. Clarke (Ed.), *Black titan: W.E.B. Du Bois*. Boston: Beacon.
- Lewis, D. L. (1993). *W.E.B. Du Bois: Biography of a race, 1868-1919*. New York: Henry Holt.
- Rafter, N. H. (1992). Criminal anthropology in the United States. *Criminology*, 30(4), 525-545.
- Rudwick, E. M. (1974). W.E.B. Du Bois as sociologist. In M. Janowitz & J. Blackwell (Eds.), *Black sociologists: Historical and contemporary perspectives* (pp. 25-55). Chicago: University of Chicago Press.
- Taylor Greene, H. T., & Gabbidon, S. L. (2000). *African American criminological thought*. Albany: State University of New York Press.
- Walker, S., Spohn, C., & DeLone, M. (2000). *The color of justice: Race, ethnicity, and crime in America* (2nd ed.). Belmont, CA: Wadsworth.
- Young, V., & Taylor Greene, H. (1995). Pedagogical reconstruction: Incorporating African American perspectives into the curriculum. *Journal of Criminal Justice Education* 6(1), 85-104.

Shaun L. Gabbidon is an assistant professor of criminal justice in the School of Public Affairs at Pennsylvania State University–Capital College. He received his Ph.D. in criminology from Indiana University of Pennsylvania. He has also served as a summer fellow at Harvard University's W.E.B. Du Bois Institute for Afro-American Research. His research interests include African American criminality, inner-city crime, and private security.